

TENATIVE DECISION
June 17, 2026 at 10:00 a.m. in Dept 7

In the matter of: THE KELVIN PENNY LIVING TRUST, dated December 19, 2018.

INTRODUCTION

On April 17, 2025, Vincent Penny (“Petitioner”) initiated this case by filing a petition alleging breach of trust, seeking an accounting, seeking court supervision of the Kelvin Penny Living Trust, and seeking removal and surcharge of the trustee, Gloria Sedillo (“Respondent”).

Currently before the court are four motions by Respondent seeking initial responses to her form and special interrogatories, requests for production of documents, and seeking to deem admitted the matters stated in her requests for admissions. No oppositions have been filed and Respondent filed notices of non-opposition, indicating that no oppositions had been filed, on June 10, 2026.

DISCUSSION

I. Legal Background

“Unlike a motion to compel further responses, a motion to compel [initial] responses is not subject to a 45-day time limit” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404 (*Sinaiko*)). There is no meet and confer requirement or time limit for bringing a motion to compel initial discovery responses, and the moving party need only show that the discovery was properly served and a timely response was not provided. (Code Civ. Proc., §§ 2030.290 [interrogatories]; Code Civ. Proc., 2031.300 [requests for production of documents]; 2033.280 [requests for admission]; *Sinaiko, supra*, 148 Cal.App.4th at pp. 410-411; *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)¹ No separate statement is required. (Cal. Rules of Court, rule 3.1345(b).)

Generally, when a party has failed to timely provide initial responses to the discovery requests at issue, he or she has waived any objection to them. (§§ 2030.290, subd. (a) [A party who fails to serve timely responses to interrogatories waives any objections to the requests, including those based on privilege or the work product doctrine.]; 2031.300, subd. (a) [a party who fails to serve timely responses to a request for production or inspection of documents “waives ‘any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section

¹ All further undesigned statutory references are to the Code of Civil Procedure.

2018.010).”]; 2033.280, subd. (a) [A party who fails to serve timely responses to a request for admissions waives any objections to the requests, including those based on privilege or the work product doctrine]; see also *Scottsdale Ins. Co. v. Super. Ct.* (1997) 59 Cal.App.4th 263, 273 [waiver occurs where the responding party fails to timely raise an objection in its initial response]; *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1125.)

Additionally, where the responding party fails to respond to requests for admission, “[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2023.010).” (§ 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (§ 2033.280, subd. (c).)

II. Merits of the Motion

Here, Respondent has shown that Petitioner did not provide timely responses to her discovery requests. Specifically, she asserts that she served the discovery requests at issue on December 19, 2025. Thereafter, Respondent granted Petitioner an extension of the time in which to respond to February 18, 2026 but Petitioner did not serve the responses. Respondent has not moved for relief from waiver. (See §§ 2031.300, subd. (a) [requests for production]; 2030.290, subd. (a) [interrogatories]; 2033.280, subd. (a) [requests for admission].) Accordingly, all objections have been waived. Petitioner is ordered to provide code-compliant, objection free responses to Respondent’s form interrogatories, set one; special interrogatories, set one; and requests for production within 30 days of the date of this court’s final order on this matter.² The matters stated in Respondent’s requests for admission, set one, are deemed admitted.

Respondent also seeks sanctions in connection with each motion. Sections 2030.290, subdivision (c), 2031.300, subdivision (c), and 2033.280, subdivision (d) each provide for mandatory monetary sanctions unless the court “finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

² While Respondent requests that the responses be served within 15 days, she has also provided her counsel’s declaration, which includes evidence that Petitioner may be suffering health issues that prevented him from providing the responses in the first place. Accordingly, the court will grant Petitioner 30 days to respond.

Respondent's counsel declares that she bills at a rate of \$1,100 per hour. As to the motion regarding requests for production, she asserts that she spent one hour working on the motion and anticipates spending another hour on the reply and at the hearing on this matter. She seeks a total of \$2,260.00, including a \$60 filing fee. As to the motion regarding special interrogatories, she seeks \$2,260.00, again consisting of one hour of incurred attorney time, one hour of anticipated attorney time, and a \$60 filing fee. As to the motion regarding form interrogatories, she seeks \$3,360.00, consisting of one hour of incurred time, two hours of anticipated time, and a \$60 filing fee. Finally, as to the motion regarding requests for admissions, she seeks \$3,360.00, consisting of one hour of incurred time, one hour of anticipated time, and a \$60 filing fee.

Here, Petitioner has not opposed the motion and, therefore makes no argument regarding his justification for failing to provide the discovery or circumstances that would make the imposition of sanctions unjust. The court notes that meet and confer emails provided by Respondent indicate that Petitioner was in ill health for at least part of the time between the service of the discovery requests and the time the motions were made but it is not clear that Petitioner was actually unable to respond to discovery the entire time. Accordingly, the court finds that sanctions are appropriate.

The court awards sanctions only for expenses actually incurred, not for anticipated expenses. (See *Tucker v. Pacific Bell Mobile Services* (2010) 186 Cal.App.4th 1548, 1551.) Additionally, no opposition was filed to any of the motions and therefore there was no need to file replies. Further, Respondent's counsel does not provide any evidence of her experience to justify the hourly rate charged. The court will award sanctions in the amount of \$3,040, consisting of one hour of time actually incurred at a rate of \$700 per hour per motion plus \$60 in filing fees per motion. Petitioner is ordered to pay to Respondent's counsel \$3,040 within 30 days of the court's final order on this matter.

CONCLUSION

The motions are GRANTED. Petitioner is ordered to provide code-compliant, objection free responses to Respondent's form interrogatories, set one; special interrogatories, set one; and requests for production within 30 days of the date of this court's final order on this matter.³ The matters stated in Respondent's requests for

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IT IS SO ORDERED.

Dated: June____, 2026

HON. PANTEHA E. SABAN
JUDGE OF THE SUPERIOR COURT